

PUBLIC LAWS

OF THE

STATE OF NORTH-CAROLINA,

PASSED BY THE

GENERAL ASSEMBLY,

AT ITS

SESSION OF 1858-'9:

TOGETHER WITH THE COMPTROLLER'S STATEMENT OF PUBLIC
REVENUE AND EXPENDITURE.

RALEIGH:

HOLDEN AND WILSON, PRINTERS TO THE STATE.

1859.

such lands, not exceeding five acres in any one site, as the United States have or may hereafter acquire for the erection and maintenance of light houses or beacons along the line of navigation of the Albemarle and Chesapeake Canal Company, from the Albemarle sound to the northern boundary of this State: *Provided, nevertheless*, That nothing herein contained shall be construed to authorize the use of said tracts for any other purposes than those above specified, not to exclude or prevent any process, civil or criminal, issuing from the courts of this State, from being served or executed within the limits of said cession.

SEC. 2. *Be it further enacted*, That this act shall be in force from and after its ratification. [*Ratified the 15th day of February, 1859.*]

AN ACT TO PROVIDE FOR FEME COVERT LUNATICS ABANDONED BY THEIR HUSBANDS. *Chap. 52.*

SECTION 1. *Be it enacted by the General Assembly of the State of North-Carolina, and it is hereby enacted by the authority of the same*, That whenever any feme covert lunatic shall be abandoned by her husband, she may by her committee, or next friend, in case there be no committee, apply to a court of equity for support and maintenance, which the court may decree as in cases of alimony, out [of] any property or estate of her husband, or of her own choses in action, legacies or distributive shares.

SEC. 2. *Be it further enacted*, That all assignments by the husband, after the lunacy of the wife, of her choses in action, legacies or distributive shares, shall be void as against such provision. [*Ratified the 16th day of February, 1859.*]

AN ACT CONCERNING THE CUSTODY OF MINOR CHILDREN IN CERTAIN CASES. *Chap. 53.*

WHEREAS, Doubts may arise as to the extent of the judicial authority in disposing of the custody of minor children, whose parents live in a state of separation; Therefore, for remedy in such and other like cases,